

SENATE BILL 613

By Massey

AN ACT to amend Tennessee Code Annotated, Title 40,
Chapter 32 and Title 55, Chapter 10, Part 4,
relative to expunction.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-32-101(g)(1)(B)(xiv), is amended by deleting the subdivision.

SECTION 2. Tennessee Code Annotated, Section 40-32-101(g)(2)(B), is amended by deleting the subdivision and substituting:

(B) At the time of the filing of the petition for expunction at least:

(i) Five (5) years have elapsed since the completion of the sentence imposed for the offense the person is seeking to have expunged, if the offense is a misdemeanor other than driving under the influence of an intoxicant, as defined in § 55-10-401, or Class E felony;

(ii) Ten (10) years have elapsed since the completion of the sentence imposed for the offense the person is seeking to have expunged, if the offense is a Class C or D felony; or

(iii) Twenty (20) years have elapsed since the completion of the sentence imposed for the offense the person is seeking to have expunged, if the offense is driving under the influence of an intoxicant, as defined in § 55-10-401; and

SECTION 3. Tennessee Code Annotated, Section 40-32-101(g), is amended by adding the following new subdivision:

(16) Notwithstanding subdivisions (g)(1)(F) and (g)(2)(A)(i), and subsection (k), a petitioner may only have a conviction for driving under the influence of an intoxicant, as

defined in § 55-10-401, expunged if the petitioner has not been convicted of any other criminal offense. In addition to the appropriate clerk's fee pursuant to § 8-21-401, the petitioner must pay a fee of fifty dollars (\$50.00), to be collected by the court clerk and then deposited in the dedicated county fund established pursuant to § 55-10-412(b) for use in the same manner as provided in § 55-10-412(c).

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.